

CHAPTER 6

Jus post Bellum #1

Justice after War

“The object in war is a better state of peace.”

*B.H. Liddell Hart*¹

This is one of the hottest topics in just war theory: how should wars end? It might seem surprising, but only very recently has the issue of justice after war—or “*jus post bellum*”—come into the prominence it deserves. All too often, still today, just war theorists stick with the first two categories—of *jus ad bellum* and *jus in bello*—and pretend that is all they have to talk about. International law, sadly, has joined just war theory regarding its relative silence on proper war termination.² This is a decrepit state of affairs that must be remedied, both for conceptual and concrete historical reasons:

- 1 Conceptually, war has three phases: beginning, middle and end. So if we want a complete just war theory—or comprehensive international law—we simply *must* discuss justice during the termination phase of war. After all, there is no guarantee that if you fought justly, for the sake of a just cause, that you will automatically impose a just set of peace terms upon your vanquished enemy. Mistakes are possible, and made frequently, during each of the three phases. It is, indeed, difficult to fight a truly just war.
- 2 Failure to include *jus post bellum* in your just war theory leaves you open to a sharp, potentially devastating objection from both realists and pacifists, namely, that just war theory fails to consider war in a deep enough, systematic enough kind of way. It simply considers war on a case-by-case basis, dusting off its precious old rules for yet another ethical application. Pacifists, for example, have long objected that just war theory, with its hitherto narrow focus, is fundamentally passive and complaisant about war—that it does not ultimately care why war breaks out and does not seek to improve things after war’s end so as to make the international system more peaceful over the longer term. I believe this objection *succeeds* against just war theorists who have no account of *jus post bellum*; if we are not to meet their sorry fate, we must include such an account to surmount this challenge.

- 3 More concretely, recent armed conflicts—in Bosnia and Kosovo, in central Africa, in Afghanistan and twice in Iraq—demonstrate the difficulty and illustrate the importance and controversy surrounding a just peace settlement. The major issues of contemporary international affairs simply demand we look at *jus post bellum*. We know that when wars are wrapped up badly, they sow the seeds for future bloodshed. Some people, for example, think that America's failure to remove Saddam Hussein from power after they first defeated him in 1991 prolonged a serious struggle and eventually necessitated the second war, for regime change, in 2003. *Would the second war have happened at all had the first been ended differently* (i.e., more properly and thoroughly, with a longer-range vision in mind)? Many historians ask the exact same question of the two World Wars and the recent, related Serb wars, first in Bosnia and then over Kosovo.
- 4 Failure to construct principles of *jus post bellum* is to allow unconstrained war termination. And to allow unconstrained war termination is to allow the winner to enjoy the spoils of war. This is dangerously permissive, since winners have been known to exact peace terms which are draconian and vengeful. The Treaty of Versailles, terminating World War I in 1918–19, is often mentioned in this connection. It is commonly suggested that the sizeable territorial concessions and steep compensations payments forced upon Germany created hatred and economic distress, opening a space for Hitler to exploit, saying in effect: "Let's vent our rage by recapturing our lost lands and let's rebuild our economy by refusing to pay compensation, and by ramping up war-related manufacturing."³
- 5 Failure to regulate war termination probably prolongs fighting on the ground. Since they have few assurances or firm expectations regarding the nature of the settlement, belligerents will be sorely tempted to keep using force to jockey for position. Since international law imposes very few clear constraints upon the winners of war, losers can conclude it is reasonable for them to refuse to surrender and, instead, to continue to fight. Perhaps, they think, "we might get lucky and the military tide will turn. Better that than just throw ourselves at the mercy of our enemy." Many observers felt this reality plagued the Bosnian civil war, which we saw in Chapter 3 had many failed negotiations and a three-year "slow burn" of continuous violence as the negotiations took place.⁴

Peace treaties should still, of course, remain tightly tailored to the historical realities of the particular conflict in question. There are all kinds of nitty-gritty detail integral to each peace treaty. But admitting this is *not* to concede that the search for general guidelines or universal standards is futile or naïve. There is no inconsistency or mystery in holding particular actors, in complex local conflicts, up to more general, even universal, standards of conduct. Judges and juries do that on a daily basis, evaluating the factual complexities of a given case in light of general moral and legal principles. We should do

the same regarding war termination. The goal of this chapter, accordingly, is to construct a general set of plausible principles to guide communities seeking to resolve their armed conflicts fairly and decently.⁵

The Ends of a Just War

The first step is to answer the question: what may a participant rightly aim at with regard to a just war? What are the goals to be achieved by the settlement of the conflict? We need some starting assumptions to focus our thoughts on these issues. First, this chapter will mainly consider classical cases of inter-state armed conflict to provide a quicker, cleaner route to the general set of post-war principles sought. But I do believe that these principles, owing to their generality and moral strength, clearly apply as well to non-classical wars, such as those we discussed in Chapter 3. The point here is to fashion an overall blueprint which can be amended, as details demand, in particular and unconventional cases.

The next assumption is that the following set of post-war principles is offered as guidance to those participants who want to end their wars in a fair, justified way. Not all participants do, of course, and to that extent they act unjustly during the termination phase. Violations of *jus post bellum* are just as serious as those of *jus ad bellum* and *jus in bello*. As in *jus ad bellum*, responsibility for fulfilling *jus post bellum* is primarily political as opposed to military, although some cases may blur that line, for instance if there is a need to impose short-term, direct military occupation over a shattered society. A related assumption is that there is no such thing as “victor’s justice.” The raw fact of military victory in war does not, *of itself*, confer moral rights upon the victor, nor ethical duties upon the vanquished. It is only when the victorious regime has fought a just and lawful war, as defined by international law and just war theory, that we can speak meaningfully of rights and duties, of both victor and vanquished, at the conclusion of armed conflict.

This is to say, importantly, that when or *if an aggressor wins a war, the peace terms will necessarily be unjust*. The injustice of cause *infects* the conclusion of the war, as readily as it infected the conduct (as I argued in Chapter 4 in connection with proportionality). Unlike other just war theorists, I believe that the three just war categories are not separate but, rather, connected. And *jus ad bellum* sets the tone and context for the other two categories, and to that extent is probably the most important. This is *not* to say that meeting *jus ad bellum* will automatically result in your meeting *jus in bello* and *jus post bellum*. But it *is* to say, conversely, that failure to meet *jus ad bellum* results in automatic failure to meet *jus in bello* and *jus post bellum*. *Once you’re an aggressor in war, everything is lost to you, morally*.

Now, we might still say that some terms which a victorious aggressor imposes are better or worse than others. A winning aggressor might—though it is unlikely—have milder peace terms than we might expect. But we cannot

call these terms *just*, since they remain the product of a war which, overall, was unjust. So, for the rest of this chapter, I shall assume that the winning side fought the war with *jus ad bellum* on its side. It is in this sense that I develop an “ideal” conception of post-war justice, to arrive at some rules and values against which we can measure and evaluate the non-ideal cases with which the world confronts us.

With these assumptions declared, let us return to our opening question: what are the ends or goals of a just war? Some say that the just goal of a just war is the proverbial *status quo ante bellum*: the victorious regime ought simply to re-establish the state of affairs which obtained before the war broke out. Restore the equilibrium disrupted by the aggressor, traditionalists advise. As Michael Walzer points out, however, this assertion makes little sense: we should not aim for the literal restoration of the *status quo ante bellum* ... because that situation was precisely what led to war in the first place!⁶ How is going back there going to improve things, or show the war was worth it? Also, given the sheer destructiveness of war, any such literal restoration is empirically impossible. War simply changes too much. For better and for worse, war remains a major generator of historical change. So the just goal of a just war, once won, must be *a more secure and more just state of affairs* than existed prior to the war. What might such a condition be?

The general answer is a *more secure possession of our rights*, both individual and collective. The aim of a just and lawful war, we know, is the resistance of aggression and the vindication of the fundamental rights of societies, ultimately on behalf of the human rights of their individual citizens. I have already argued that these deepest values revolve around the concept of a minimally just and hence legitimate community. Such a community is one which does all it reasonably can to: 1) gain recognition as being legitimate in the eyes of its own people and the international community; 2) adhere to basic rules of international justice and good international citizenship, notably non-aggression; and 3) satisfy the human rights of its individual members (to security, subsistence, liberty, equality and recognition).

With regard to this general principle—that the proper aim of a just war is the vindication of those rights whose violation grounded the resort to war in the first place—more detailed commentary needs to be offered. For what does such “vindication” of rights amount to: what does it include; what does it permit; and what does it forbid? The last aspect of the question seems the easiest to answer, at least in abstract terms: the principle of rights vindication forbids the continuation of the war after the relevant rights have, in fact, been vindicated. To go beyond that limit would itself become aggression: men and women would die for no just cause.⁷ This bedrock limit to the justified continuance of a just war seems required in order to prevent the war from spilling over into something like a Crusade, which demands the utter destruction of the demonized enemy. The very essence of justice of, in, and after war is about there being firm limits and constraints upon its aims and

conduct. Unconstrained fighting, with its fearful prospect of degenerating into barbaric slaughter, is the worst case scenario—regardless of the values for which the war is being fought.

This emphasis on the maintenance of some limits in wartime has the important consequence that there can be no such thing as a morally-mandated unconditional surrender. The principles vindicated successfully by the just state *themselves impose outside constraints* on what can be done to an aggressor following its defeat. This line of reasoning might spark resistance from those who view favourably the Allied insistence on “unconditional surrender” during the closing days of World War II. But we need to distinguish here between rhetoric and reality. The policy of unconditional surrender followed by the Allies at the end of that war was *not* genuinely unconditional; there was never any insistence that the Allies be able to do whatever they wanted with the defeated nations, as was, for instance, standard practice in ancient Greek and Roman times. Churchill himself said that “we are bound by our own consciences to civilization... [we are not] entitled to behave in a barbarous manner.”⁸ At the very most, the policy which the Allies pursued was genuinely unconditional *only vis-à-vis* the governing regimes of the Axis powers, but *not vis-à-vis* the civilian populations in those nations. Such a more discriminating policy on surrender may be defensible in extreme cases, involving truly abhorrent regimes, but is generally impermissible. For insistence on unconditional surrender is usually disproportionate and will prolong fighting as the defeated aggressor refuses to cave in, fearing the consequences of doing so. Walzer believes this was the case during the Pacific War, owing to America’s insistence on Japan’s unconditional surrender. Japan kept fighting because of this insistence, and eventually America resorted to atomic weapons to end the struggle. Walzer believes that the atom bombs would not have been necessary at all had America had a more reasonable policy regarding surrender in the first place.⁹

It is thus the responsibility of the victor to communicate clearly to the losing aggressor its sincere intentions for post-war settlement, intentions which must be consistent with the other principles of post-war justice here developed. This means that some serious planning must go into the post-war phase *right from the start*. Winners, like America over Iraq in 2003, should never find themselves in a position where they have won the war but they do not know what to do next, and so start making up post-war policy on the fly. That is irresponsible and the potential for bad decisions skyrockets in probability.¹⁰

What does the just aim of a just war—*namely, rights vindication, constrained by a proportionate policy on surrender*—precisely include or mandate? The following is a plausible list of principles regarding what would be a just settlement of a just war:

- ♦ The aggression needs, where possible and proportional, to be rolled back, which is to say that the unjust gains from aggression must be

eliminated. If, to take a simple example, the aggression has involved invasion and taking over a country, then justice requires that the invader be driven out of the country and secure borders re-established, much as what happened regarding Iraq and Kuwait in 1990–91. The equally crucial corollary to this principle is that the victim of the aggression is to be re-established as an independent political community, enjoying political sovereignty and territorial integrity.

- ♦ The commission of aggression, as a serious international crime, requires punishment, in two forms: compensation to the victim for at least some of the costs incurred during the fight for its rights; and war crimes trials for the initiators of aggression. I will later argue that these are not the only war crimes trials required by justice in war's aftermath.

Why must there be punishment at all? Why can't we just cancel the aggressor's gains, and then live and let live? Three reasons suggest themselves. First, the obvious—yet powerful—one of deterrence. Punishing past aggression deters future aggression, or at least does so more than if we had no punishment at all. No punishment seems a lax policy which actually invites future aggression. Secondly, proper punishment can be an effective spur to atonement, change and rehabilitation on the part of the aggressor. Finally, and most powerfully, failing to punish the aggressor degrades and disrespects the worth, status and suffering of the victim.

- ♦ The aggressor state might also require some demilitarization and political rehabilitation, depending on the nature and severity of the aggression it committed and the threat it would continue to pose in the absence of such measures. "One can," Walzer advises, "legitimately aim not merely at a successful resistance but also at some reasonable security against future attack."¹¹ The question of forcible, forward-looking rehabilitation is one of the most controversial and interesting with respect to the justice of settlements.

Metaphorically, we have noted that a just war, justly prosecuted, is something like radical surgery: an extreme yet necessary measure to be taken in defence of fundamental values, such as human rights, against severe threats to them, like violent aggression. And if just war, justly prosecuted, is like radical surgery, then the justified conclusion to such a war can only be akin to the rehabilitation and therapy required after the surgery. This is in order to ensure that the original intent is effectively secured—namely, defeating the threat and protecting the rights—and that the patient is materially better off than prior to the exercise. The "patient" in this case is, in the first instance, the victim(s) of aggression. Secondly, it refers to the international community generally—including even the aggressor(s) or, at least, their civilians.¹²

Sufficient comment has already been offered on what the first proposition requires and why: aggression, as a crime which justifies war, needs to be rolled back and have its gains eliminated as far as possible and proportional;

and the victim of aggression needs to have the objects of its rights restored. This principle seems quite straightforward and elemental, one of justice as rectification. The aggressor had an unjust gain and thus must lose that gain; whereas the victim had an unjust loss and thus must, where possible, be restored in that loss. But what about compensation, “political rehabilitation,” and war crimes trials?

Compensation and Discrimination

Since aggression is a crime which violates important rights and causes much damage, it is reasonable to contend that, in a classical context of inter-state war, the aggressor nation, “Aggressor,” owes some duty of compensation to the victim of the aggression, “Victim.” This is the case because, in the absence of aggression, Victim would not have to reconstruct itself following the war, nor would it have had to fight for its rights in the first place, with all the death and destruction that implies. It has been said that the deepest nature of the wrong which an aggressor commits is to make people fight for their rights (i.e., to make them resort to violence to secure those things they have an elemental entitlement to in the first place, and which they should enjoy as a matter of course).¹³ To put the compensation issue bluntly, Aggressor has cost Victim a considerable amount, and so at least some restitution is due. The critical questions seem to be: *how much* and *from whom* in Aggressor is the compensation to be paid out?

The “how much” question, clearly, will be relative to the nature and severity of the act of aggression itself, alongside considerations of what Aggressor can reasonably be expected to pay at war’s end. Care needs to be taken not to bankrupt Aggressor’s resources, if only for the reason that the civilians of Aggressor still, as always, retain their claims to human rights fulfilment, and the objects of such rights require that resources be devoted to them. There needs, in short, to be an application of the principle of proportionality here. The compensation required may not be draconian in nature. We have some indication, from the financial terms imposed on Germany at the Treaty of Versailles, that to “beggar thy neighbour” is to pick future fights.

This reference to the needs of the civilians in Aggressor gives rise to important considerations of discrimination in answering the “from whom” question: when it comes to establishing terms of compensation, care needs to be taken by the victorious Victim, and/or any third-party “Vindicators” who fought on behalf of Victim, not to penalize unduly the civilian population of Aggressor for the aggression carried out by their regime. This entails, for example, that any monetary compensation due to Victim ought to come, first and foremost, from the personal wealth of those political and military elites in Aggressor who were most responsible for the crime of aggression. Walzer seems to disagree, as he suggests that such a discriminating policy on reparations “can hardly” raise the needed amount. But he ignores the fact that, historically,

those who launch aggressive war externally have very often abused their power internally to accumulate massive, sometimes obscene, personal fortunes. Saddam Hussein, for example, skimmed billions off Iraqi oil sales and used them to live lavishly, to secure the loyalty of his Republican Guard and to build up enormous foreign bank accounts in case things turned bad.¹⁴

In light of this supposed shortfall—between the fortunes of dictators and what their victims are owed—Walzer argues that, since “(r)eparations are surely due the victims of aggressive war,” they should be paid from the taxation system of the defeated Aggressor. There ought to be a kind of post-war poll tax on the population of Aggressor, with the proceeds forwarded to Victim. In this sense, he says, “citizenship is a common destiny.” I believe, however, that such a proposal probably fails to respect the discrimination principle during war termination. Though Walzer insists that “(t)he distribution of costs is not the distribution of guilt,”¹⁵ it is difficult to see what that is supposed to mean here: why not respond by asking why civilians should be forced, through their tax system, to pay for the damage if they are not in some sense responsible for it? Respect for discrimination entails taking a *reasonable* amount of compensation *only* from those sources: 1) which can afford it; and 2) which were materially linked to the aggression in a morally culpable way. If such reparations “can hardly pay” for the destruction Aggressor meted out on Victim, then that fiscal deficiency does not somehow translate into Victim’s moral entitlement to tax everyone left over in Aggressor. *The resources for reconstruction simply have to be found elsewhere.*

The one exception to this would be if Aggressor’s destruction was of such magnitude that Victim can no longer afford to be a minimally just state, whereas Aggressor’s post-war resources are clearly in a surplus over that threshold level. *Provided* that is the case, and *provided* the fortunes of the guilty in Aggressor were first exhausted, *then* we could justifiably talk about some kind of broader, Walzer-style transfer from Aggressor to Victim. Victim at least has the right to that level of post-war resources sufficient to provide minimally just governance to its people. If the reason it fell below that level was enormous wartime expenditures fighting off Aggressor, then it makes sense to say Aggressor owes it at least that. But if both Victim and Aggressor, after war, retain resources clearly above the minimal level, then the financial restitution coming from Aggressor to Victim must be limited to the assets of the guilty. That is what discrimination requires, and I believe such a more moderate policy would render the issue of compensation a lot less explosive than what it has been in the past.

One application of these thoughts to recent events can be seen by considering the following question: should America have levied a post-war poll tax on the citizens of Afghanistan, to increase the funds needed to compensate and care for those who lost loved ones during the 9/11 strikes, or else to rebuild New York’s shattered financial district? The principles just developed argue *against* such a tax, since there is a serious question of its

affordability to Afghanistan, and an even sharper one regarding responsibility, since the available evidence points to a collusion between the now-routed Taliban regime and the al-Qaeda terrorist network as the source of the attacks. Commendably, there has been virtually no talk of any such punitive measure on Afghanistan, and Americans have instead turned towards each other to raise the needed reconstruction resources. For example, right after 9/11, American celebrities and singers hosted a televised fundraiser for the widows and injured of the bombings.

Sanctions

A further implication of respect for discrimination in settlements is a ban on sweeping socio-economic sanctions. The reasoning is clear: sanctions which cut widely and deeply into the well-being of the civilian population are not only punitive, they surely end up punishing some—perhaps a great many—who do not deserve such treatment. When such treatment strikes at their vital welfare, such sanctions are properly condemned as inappropriately targeted and morally wrong-headed. People have argued over whether US-imposed sanctions on Iraq—following the Persian Gulf War in 1991 and lasting until 2003—counted as such morally-questionable sanctions or not. On the one hand, statistics show a sharp drop-off in Iraqi GDP during those years, as well as a sharp rise in indicators of poverty and preventable disease. On the other, supporters of the sanctions argue that Saddam Hussein's regime could have prevented any humanitarian damage by improving access to resources and giving his military and ethnic clique less, so that the majority could have had more and been alright. Saddam failed to do this for his own selfish reasons, and so he is the one to blame. We'll return to this debate when we focus on the Persian Gulf War settlement more broadly at the end of this chapter. In any event, for now, there is a vocal and growing community of thought which commends instead sanctions which target *only* the guilty elites, for instance by freezing their personal assets, banning their foreign travel and blocking any weapons trade. For example, the American assets of some organizations alleged to be involved in terrorism have been frozen since 9/11; it will be interesting to see whether further sanctions in the war on terror will be applied and, if so, what kind.¹⁶

Rehabilitation

MILITARY

We need to distinguish between military and political rehabilitation and note that the former is readily supported, while the latter is steeped in hot controversy. Under the military heading, we have the notion that, in the post-war

environment, Aggressor may be required to demilitarize, at least to the extent that it will not pose another serious threat to Victim—and other members of the international community—for the foreseeable future. The appropriate elements of such demilitarization will clearly vary with the nature and severity of the act of aggression, along with the extent of Aggressor's residual military capabilities following its defeat. But they may, and often do, involve: the creation of a demilitarized "buffer zone" between Aggressor and Victim (and any Vindicator), whether it be on land, sea or air; the reducing and capping of certain aspects of Aggressor's military capability, be they troops, weapons or weapons-deployment systems; and especially the destruction of Aggressor's weapons of mass destruction (WMD). Why may an aggressor's WMD be destroyed, while those of other nations remain intact? As mentioned in Chapter 3, the key thing with WMD is *not* their mere possession so much as a responsible record of having such weapons *and* a stable recent history of non-aggression. By committing aggression, Aggressor has broken any trust—or, at least, tolerance—offered by the international community in this regard. Aggressor has shown itself to be capable of aggressive destruction and international criminality. It is simply too great a risk to allow it to keep WMD. Besides, from a more global point of view, the fewer WMD, the better. Non-proliferation seems the route to greater global security.

Proportionality must be brought to bear upon this general principle of military rehabilitation: the regime in Aggressor may not be so demilitarized as to jeopardize its ability to fulfil its function of maintaining law and order within its own borders, and of protecting its people from other countries who might be tempted to invade—for whatever reason—if they perceive serious weakness in Aggressor. The world, after all, has some rough neighbourhoods. Another way this requirement could be met would be for the victors to provide reliable security guarantees to the people of Aggressor, for instance by keeping military garrisons in the country.

POLITICAL

The imposition of political rehabilitation seems the most serious and invasive measure permitted a just regime, following its justified victory over Aggressor. This topic is so complex and topical that we have reserved all of next chapter for its thorough discussion. There I will argue that if the actions of Aggressor during the war were truly atrocious, or if the nature of the regime in Aggressor at the end of the war is still so heinous that its continued existence poses a serious threat to international justice and human rights, then—and only then—may such a regime be forcibly dismantled and a new, more defensible regime established in its stead. But we should be quick to note, and emphasize, that such construction necessitates an additional commitment *on the part of Victim and any Vindicators* to assist the new regime in Aggressor

with this enormous task of political restructuring. This assistance would be composed of seeing such “political therapy” through to a reasonably successful conclusion—which is to say, until the new regime can stand on its own, as it were, and fulfil its core functions of providing domestic law and order, human rights fulfilment, and adherence to the basic norms of international law, notably those banning aggression. In other words, reconstruction must at least create a minimally just form of governance.

Apologies

We should also expect a formal apology by Aggressor to Victim, and any Vindicator, for its aggression. While it is right to agree with Walzer that “official apologies somehow seem an inadequate, perhaps even a perfunctory, way” of atoning for aggression,¹⁷ this is no reason to rule such an apology out of the terms of the peace. Even though formal apologies cannot of themselves restore territory, revive casualties, or rebuild infrastructure, it is obvious that they do mean something real and important. If not, why do such formal apologies, and victim’s campaigns to secure such apologies, generate considerable political and media attention? If not, why do informed people know that Germany has apologized profusely for its role in World War II whereas Japan has hardly apologized at all? (Indeed, there were riots in China as recently as 2005 protesting a Japanese history textbook downplaying Japan’s occupation of Chinese territory during the 1930s and 1940s.) Walzer must concede that we expect wrongdoers eventually to admit their wrongdoing, and to express their regret for it. (The Japanese Prime Minister did indeed express a public apology to China following the 2005 riots.) We feel that victims of wrongdoing are owed that kind of respect, and that aggressors must at least show recognition of the moral principles they violated as part of their own rehabilitation. Apologies are an integral aspect of a complete peace treaty.

War Crimes Trials

This leaves the vexed topic of war crimes trials, perhaps the one issue of *jus post bellum* which has already received sustained and significant attention from many scholars. The normative need for such trials follows from Walzer’s dictum that: “There can be no justice in war if there are not, ultimately, responsible men and women.”¹⁸ Individuals who play a prominent role during wartime must be held accountable for their actions and what they bring about. There are, of course, two broad categories of war crimes: those which violate *jus ad bellum* and those which violate *jus in bello*.

Jus ad bellum war crimes have to do with “planning, preparing, initiating and waging” aggressive war, as we have defined it throughout. Responsibility for the commission of any such crime falls on the shoulders of the political

leader(s) of the aggressor regime. Such crimes, in the language of the Nuremberg prosecutors, are “crimes against peace.”¹⁹

NUREMBERG

The Nuremberg trials, of course, refer to the very first set of modern war crimes trials, held right after World War II in the German city of that name. (There were Japanese war crimes trials, too, in Tokyo.)²⁰ In Nuremberg, much of what was left of the Nazi hierarchy was put on trial for both war crimes (i.e., starting an aggressive war) and crimes against humanity (i.e., The Holocaust). While every war crime is also a crime against humanity, the converse is not true, since crimes against humanity can be committed in peacetime and cover a broader range of terrible actions, such as torturing political dissidents.

While some complained that the Nuremberg trials were “victor’s justice,” it is hard to agree that that is all they were. The process, after all, was rigorous, open and fair. All those charged had lawyers, could cross-examine witnesses and experts, and present their own evidence. The trials operated on rules known to all. Consider also the raw numbers: 22 Nazi elites were tried over the course of a year, three were found innocent, nineteen guilty. Of the guilty, eleven were sentenced to death and eight to prison sentences of varying lengths. This conviction rate, of just over 86 per cent, is in line with the average rate of conviction for non-war-crimes in most developed societies.²¹ (If that seems high, consider: 1) that prosecutors often drop charges against those they feel they cannot convict; and 2) there are many social and psychological factors—apart from the case’s evidence—which incline judges and juries to convict.) Combine this percentage at Nuremberg with the variety of outcomes in sentencing there, and it looks like you have a fairly well-developed, reasonable judicial process looking at the evidence in each individual’s case as opposed to one which sweepingly condemns and convicts them all because they happened to be on the losing side.²² Plus, the first international war crimes trials had to happen *sometime*. The notion that the Nuremberg trials operated on principles just then being invented is silly: there had been talk since the 1800s of having post-war criminal tribunals, and the codes of proper military conduct, such as the Hague Conventions (1899–1907)—to say nothing of basic moral decency—were known to all who were charged. Whenever there is a new institution or innovation there is bound to be controversy, especially when something like war is involved. It was not perfect, but the Nuremberg trial process was decent and defensible. Decent, because it followed standard due process regulations. (Ironic and notable, indeed, that these Nazis, when in power, denounced the rule of law and due process and yet benefited from them during these trials.) And defensible, because the Nazis were culpable for horrendous crimes, and at the time the only people capable of running a trial for them were the winners of the

war. It was a bold institutional move, for proper moral motives, which has resonated down to today.²³

CONTEMPORARY TRIBUNALS

Resonated how, exactly? In a threefold sense. First, the Nuremberg trials directly inspired some future war crimes trials. After the brutal Bosnian civil war of 1992–95, and the near-genocidal Rwandan massacres of 1994, the international community decided to convene war crimes, and crimes against humanity, proceedings. The one regarding Bosnia is still ongoing and takes place at The Hague in Holland, long a place associated with international diplomacy and institutions. The other, regarding Rwanda, is situated in neighbouring Tanzania and is likewise still ongoing. Both tribunals actually confront huge back-logs in trials and workloads. These *ad hoc*—or “one-time”—criminal procedures feature the same commitment to rigorous due process as Nuremberg did. This is a partial reason for the backlog. They have also, unlike Nuremberg, tried some of the biggest fish—the ex-prime minister of Rwanda and the ex-president of Serbia/Yugoslavia, both seen as heavily complicit in the respective wars.

Partly to overcome the limitations of *ad hoc* trials, and to institute something more lasting, there arose in the late 1990s a movement to create a *permanent* international criminal court or ICC. In 1998, the Treaty of Rome was signed, paving the way for the ICC to be formed, also at The Hague. The court, a subsidiary of the United Nations (UN), is just now starting to get underway. Since it will be permanent, and fully international, accusations regarding revenge motives and victor’s justice fail when applied to the ICC. Its permanence and global resources will also allow it to become a more experienced and efficient court process than, say, either the Bosnian or Rwandan efforts, which continue to be starved of resources. Although Americans continue to object to the ICC—fearing that it could be “politically hijacked” to feature “show trials” of US servicemen—it is going ahead anyway, and there are principled reasons to support the court.

First, there is the deterrence benefit. If all war crimes, in all wars, are prosecuted and punished by an impartial world court, then it stands to reason that future, would-be war criminals might well be deterred from committing their ghastly actions if they know that they will themselves pay a personal price for their crimes. Second, there is the war termination benefit. A permanent and non-partisan world court can assist nations in wrapping up their armed conflicts, punishing acts in an impartial manner. Third, there is the world system benefit. The global community has already witnessed the huge benefits of having an international system based on rules of law which are reasonable, impartial and applicable to all. The trade sector is the clearest and most recent example of this. The construction of a permanent world criminal court helps complete the international landscape, thereby adding to

the existence of a global system which can run smoothly on a consistent and comprehensive set of shared values, notably human rights. History shows that specialist agencies of the UN (i.e., those manned by trained professionals and focusing on a specific task) enjoy a much higher success rate than the generalist and politicized agencies, such as the General Assembly and Security Council. Finally, there is the commitment benefit. The construction of a permanent war crimes court allows the world community to better keep its commitments to the core values of peace, security, and human rights. A world court enhances peace by punishing deeds which, if left unpunished, could sow the seeds of future wars. This augments global security more broadly. Finally, the existence of a world court for war crimes and crimes against humanity marks another much needed advance in the compelling cause of human rights protection around the world.

The third effect of Nuremberg—apart from the recent ad hoc trials and the ICC—concerns the much more active willingness of national armed forces, at least in developed nations, to investigate and prosecute members of their own services for alleged war crimes. The activity here is real and quite remarkable. Consider the American military prosecuting and punishing those of its own soldiers who engaged in the infamous My Lai Massacre during the Vietnam War. Frustrated by civilian support for, and hiding of, Viet Cong soldiers, one American unit—under Lt. William Calley—morally snapped and deliberately massacred the inhabitants of the village of My Lai. More recently, the Canadian Armed Forces prosecuted and punished some members of its Airborne Unit which served in the 1993 intervention in Somalia. Thuggish members of that Unit caught a Somali civilian stealing from their supplies, and beat him to death. Then there is the US reservists facing charges in the 2004 Abu Ghraib prisoner abuse scandal in Iraq. The first convictions came down in Spring, 2005. The list here can go on and on: the developed world's armed services drill their soldiers in the rules of engagement, and the ethics of war and peace, and they quite vigilantly oversee them. In some engagements, I have actually heard servicemen say, only half-jokingly, that they are more afraid of their own service's military lawyers than they are of the enemy. It should be noted, for those still anxious about the ICC, that it is empowered to act only when a given national armed service fails to act on and investigate an alleged war crime. It does not replace or supercede the national military justice systems.²⁴

JUS AD BELLUM CRIMES

Enough about Nuremberg, and its sizable rippling consequences over time. Back to the ethical principles behind *jus ad bellum* war crimes. Subject to proportionality, the leaders of Aggressor are to be brought to trial before a public and fair international tribunal and accorded full due process rights in their defence. Why subject this principle of punishment to proportionality

constraints? Why agree with one commentator who says that “it isn’t always true that their leaders ought to be punished for their crimes”?²⁵ The answer is that sometimes such leaders, in spite of their moral decrepitude, retain considerable popular legitimacy and thus bringing them to trial could seriously destabilize the polity within Aggressor. The international community recently faced this situation twice. The first was in Somalia, in 1992–93, when attempt was made to arrest faction leader Mohammed Farah Aidid for war crimes, resulting in serious escalation in the conflict, which ultimately backfired and resulted in the international force withdrawing from the country. The second time was in Bosnia, in 1994–95, when charges against Bosnian Serb leaders Ratko Mladic and Radovan Karadzic seriously increased tensions and delayed the onset of a not unreasonable peace agreement. Care needs to be taken, as always, that appeal to proportionality does not amount to rewarding aggressors, or to letting them run free and unscathed despite their grievous crimes. Yet this care does not vitiate the need to consider the destruction and suffering which might result from adhering totally to what the requirements of justice as retribution demand.

One interesting and not unprincipled compromise position, with regard to Bosnia, has been not to move directly into Bosnian Serb lands to arrest Mladic and Karadzic—owing to the serious instability that would probably produce—but, rather, to pen the two of them into their narrow territory for the rest of their lives, by stipulating that, should they ever cross an international border, they will immediately be arrested and brought to trial. The two are, it is said, under a kind of house arrest. Another option is simply to wait until the wounds of war have healed somewhat, say around ten years, and then move in to arrest and try such figures. NATO in 2003 tried unsuccessfully to arrest Karadzic during a pin-point raid. In these cases, justice delayed need not be justice denied—a trial will be held but only after the political community has progressed enough to absorb its impact. Like murder in domestic legal regimes, there must never be a “statute of limitations” on when a case for war crimes, or crimes against humanity, can be brought.²⁶

Should political leaders on trial for *jus ad bellum* violations be found guilty, through a public and fair proceeding, then the court is at liberty to determine a reasonable punishment, which will obviously depend upon the details of the relevant case. Perhaps the punishment will only consist of penalizing the leaders financially for the amount of compensation owed to Victim, as previously discussed. Or perhaps, should the need for political rehabilitation be invoked, such leaders will need to be stripped of power and barred from political participation, or perhaps even jailed. Some figures in the Bosnian Serb community, for example, have been prohibited from running in subsequent elections. It is clear that it is not possible, *a priori*, to stipulate what exactly is required with regard to such personal punishments. The point here is simply that the principle itself—of calling those most responsible for the aggression to task for their crimes—must be respected as

an essential aspect of justice after war. The actual enforcement of this principle might constitute a non-trivial deterrent to future acts of aggression on the part of ambitious heads of state. If such figures have good reason to believe that they will themselves, personally, pay a price for the aggression they instigate and order, then perhaps they will be less likely to undertake such misadventures in the first place. The ex-prime minister of Rwanda was convicted and imprisoned for his large role in the 1994 civil war. The ex-president of Serbia/Yugoslavia, Slobodon Milosevic, was on trial at The Hague for his actions in the Bosnian civil war and the 1999 war with NATO over Kosovo. (But then he died of a heart attack in his cell.) The personal capture of Iraq's Saddam Hussein, in late 2003, and the start of his Iraqi trial in 2005, underlines the international community's commitment to increase *personal* punishment of aggressors and war criminals.

Heads of State

Walzer stresses that a head of state cannot escape judgment, at any such trial, by appealing to the function of his office. The fact that he “represents” his people on the world stage, and rationalizes his actions in terms of “reasons of state,” can provide no exoneration for the crime of launching an unjust war. Why not? “Representative functions [far from exonerating representatives] are instead peculiarly risky ... because statesmen ... act for other people, and with wide-ranging effects.” Heads of state covet power, actively seek it, enjoy its exercise, and exert enormous influence. If they “hope to be praised for the good they do, they cannot escape blame for the evil.” Heads of state are as subject to blame—both moral and legal—as the rest of us, probably even more so since their actions have larger consequences. Walzer suggests that, when fishing for *jus ad bellum* war crimes, we cast our net wider than the head of state. No doubt, we must first look to the head of state but then should move down the chain of authority to see if other individuals are also decisively implicated. There will probably be others, such as the heads of the various armed forces, the head of national security, the head of intelligence gathering, the defence minister, certain top-level civil servants, and so on. It was also argued in Chapter 4, against Walzer, that some soldiers might meaningfully be included in this chain of authority. The general principle we are to apply in this regard is the following: *the greater a person's influence on his country's actions in wartime, the greater his responsibility for them.*²⁷

Collective Democratic Responsibility

Some of Walzer's most interesting reflections in this regard concern the collective responsibility that citizens of a democracy face when their country launches an unjust war, as Walzer believes America did during Vietnam. Walzer suggests that we discern their responsibility by first considering what the responsibility of citizens in a perfect democracy would be. By such a

“perfect democracy,” Walzer means something like Jean-Jacques Rousseau’s ideal society: a small participatory (or direct) democracy, peopled by enthusiastic citizens animated by the general will (i.e., a sincere regard for the common good of the community in which they are all equal members). Walzer asserts that in this idealized case, even though “it cannot be said that every citizen is the author of every state policy,” it remains true that “every one of them can rightly be called into account.” So who would be responsible for an aggressive war in this idealized instance? “(A)ll those men and women who voted for it and who cooperated in planning, initiating and waging it ... All of them are guilty of the crime of aggressive war, and of no lesser charge.” Those who voted against the war are not to blame, whereas those who did not even bother to vote “are blameworthy, though they are not guilty of aggressive war.” Why is this the case? Walzer suggests we recall the parable of the Good Samaritan, which illustrates our agreement that if it is possible for one to do good without great cost to oneself, then one ought to do it. Walzer says that when it comes to resisting aggressive war, “the obligation is stronger” than in the Good Samaritan story, because “it is not a question of doing good but of preventing serious harm, and harm that will be done in the name of my own political community—hence ... in my own name.” An engaged citizen, in a perfect democracy which is waging an aggressive war, “must do all he can, short of accepting frightening risks, to prevent or stop the war.” Presumably, political action, canvassing, arguing, organizing, protesting, running for office oneself, giving money to the cause, are all things on his mind here. In general, “*the more one can do, the more one has to do* [my italics].”²⁸

Very few of us, however, live in a perfect democracy. How then does this idealized model of democratic responsibility translate under conditions of an actual, imperfect, contemporary, representative democracy? Walzer believes it crucial to get the right description. Such a democracy has a fairly large, diverse and scattered population, and is “governed at a great distance from its ordinary citizens by powerful and often arrogant officials.” While these officials are periodically endorsed through elections, “at the time of the choice very little is known about their programs and commitments” or, at least, their actual willingness to follow through on them. Active political participation is the rare exception rather than the regular rule, and knowledge about the justice of wars fought is “occasional, intermittent ... [and] partially controlled by these distant officials ... which ... allows for considerable distortions.” One is reminded here of the ongoing controversy surrounding official US and UK intelligence estimates of Iraqi WMD, in 2003, as grounds for war.²⁹

Under these normal conditions in an advanced Western democracy, the bulk of the burden for waging aggressive war will still fall most heavily on the governing elites and intelligentsia who support the war. We know this excuses those citizens who vote against the war and emphatically those who

also protest against it, rally opposition to it, and so on. But does it completely excuse those citizens who support the unjust war effort? It does so, Walzer says, only if the information required to make a plausible judgment is seriously distorted by the elites, and correct information is exceedingly difficult for the citizenry to get their hands on. It does *not* excuse the citizenry if, with some effort, they could come across this information and make principled judgments. If citizens choose not to seek out such information, preferring either to “zone out” in front of the TV, or to endorse the war out of unreflective patriotism, then they are blameworthy, though *not* of the full charge of aggressive war. What they are guilty of, Walzer suggests, is “bad faith as citizens.” The information about the war’s injustice is available, say through credible media sources; it is critically important to do what one can to prevent serious harm (especially when it is being done in one’s name); so failure to do so constitutes, at least, a failure to meet the moral requirements of decent democratic citizenship. Widespread bad faith, in Walzer’s eyes, constitutes a searing indictment of the democracy in which it occurs. It reflects poorly on its system of education, on its media outlets, on its political system and representatives and, above all, on the very character of its people and their moral maturity.³⁰

JUS IN BELLO WAR CRIMES

Jus ad bellum war crimes trials, we know, are not the only ones mandated by just war theory and international law. Attention must also, in the aftermath of conflict, be paid to trying those accused of *jus in bello* war crimes. Such crimes include: deliberately using indiscriminate and/or disproportionate force; failing to take due care to protect civilian populations from lethal violence; employing weapons which are themselves intrinsically indiscriminate and/or disproportionate, such as those of mass destruction; employing intrinsically heinous means, like rape campaigns; and treating surrendered prisoners of war in an inhumane fashion, such as torturing them. Primary responsibility for these war crimes must fall on the shoulders of those soldiers, officers and military commanders who were most actively involved in their commission. Officers and commanders carry considerable moral burdens of their own during wartime. They are duty bound *not* to issue orders which violate *any* aspect of the laws of war. Furthermore, they must plan military campaigns so that foreseeable civilian casualties are minimized, and they must teach and train their soldiers not only about combat but also about the rules of just war theory and the laws of armed conflict.³¹

A critical aspect to note here is that, unlike *jus ad bellum* war crimes, *jus in bello* war crimes can be—and usually are—committed by all sides in the conflict. It is fair to say that at least a few *jus in bello* violations are usually committed by every side in every armed conflict. So, care needs to be taken that Victim/Vindicator avoid the very tempting position of punishing only

jus ad bellum war crimes. In order to avoid charges of having a “double-standard,” or engaging in revenge punishment, the Victim/Vindicator—despite the justice of its cause in fighting—must also be willing either to try its suspected soldiers within its own military justice system or else to submit them to an impartially constructed international tribunal, such as the ICC. The exact kind of punishment for *jus in bello* war crimes, as for *jus ad bellum* violations, cannot be specified philosophically in advance of considering the concrete details of the case in question. It may involve such things as: disciplinary action within the service; demotion within, or expulsion from, the armed forces; jail time; perhaps the paying of personal restitution; and so on.

Let’s consider the two defences soldiers most often employ in *jus in bello* war crimes cases: that of battle frenzy; and that of superior orders. The idea behind the first defence is that a particular battle, or even a whole war, is so intense, chaotic and brutalizing that, although it starts out measured and discriminating, it ends up escalating to the point where atrocities get committed. This was a line of defence taken by Calley and his comrades regarding the My Lai Massacre. We are right to be sceptical of this argument. Even in alleged cases of battle frenzy, other soldiers present at the scene seem to retain their control and combat savvy *under the exact same conditions* as those who fly off the handle and commit atrocities, like slaughtering civilians. Indeed, it was because some of these more sober soldiers were present, but non-participating, at the My Lai Massacre that Calley and his comrades were arrested, tried and convicted. The only plausible case for this implausible defence, as Walzer suggests, is when a senior officer actually encourages battle frenzy as a way of cementing the fighting spirit or unity of his troops. But this is at best *a mitigating factor in punishment*, not an excuse or justification for a finding of innocence. Walzer notes that such an officer is not only stupid—since soldiers fight best when they are disciplined and controlled, not wild and frenzied—he is issuing a blatantly immoral order; and the soldiers under him should not, and are usually taught not to, follow such an order.³²

This ties into the second defence most frequently offered by soldiers in defence of *jus in bello* war crimes charges: superior orders. Such a defence strategy invokes savage scorn, almost automatically, owing to its extensive use by the Nazis at Nuremberg. But we should not indulge in such easy, black-and-white criticism. From the first day of induction into the armed forces, a soldier is literally drilled into obeying the orders of his commanding officers. This is the case in both just and unjust societies. Failure to obey *always* comes with punitive measures, some truly painful and serious. The very point of military training is to habituate soldiers to follow orders under the most hellish conditions of war, so that they can retain fighting coherence and achieve their objectives. Even so, ordinary soldiers, by common sense if not by training, know when they are confronted with a blatantly immoral order (such as massacring civilians), and they remain duty bound not to follow it. If they do

follow it, they should be charged with war crimes. The only excuse here would be if the blatantly immoral order was *coupled with* a credible threat of execution for disobedience. Nazi officers, for example, would routinely shoot their own disobedient soldiers in front of their entire unit to enforce compliance. A soldier with a gun at his head, clearly, is a man acting under extreme duress and so cannot be held readily responsible for his actions. The person to be held responsible here would be the person who issued the immoral order and coupled it with the grievous threat as a matter of policy (i.e., the commanding officer). The excuse of superior orders will *only* hold if the penalty for disobedience is extremely severe, such as execution. There is always some penalty for disobedience, but not any old penalty will suffice as an excuse here. The threat of demotion in the ranks, for instance, is obviously not enough to excuse murder. It has to be something as grave as execution to count. And, again, it counts *only as an excuse or mitigation in punishment*, and never as a justification for a verdict of innocence.³³

So officers and commanders are duty bound not to issue orders which violate any aspect of the laws of war, nor are they to threaten excessively severe penalties for failing to comply with an order. The orders they give, in other words, must all fit within the general structure of permissible action established by the laws of war and just war theory.

Publicity

Do the terms of the settlement, as thus far discussed, need to be public? On the one hand, war settlements often have a deep impact on people's lives. They are thus entitled to know the substance of peace settlements, and especially how they are likely to affect them. Kant, for one, was vehement about this publicity requirement in his famous writings on war.³⁴ But someone might challenge this publicity principle, for instance, by citing a counter-example. Consider the Cuban Missile Crisis of 1962. At the height of the Cold War, America discovered that the Soviet Union was installing nuclear-tipped missiles in Cuba at Fidel Castro's invitation. These missiles were thought to pose unacceptable first-strike capacities against the United States—since Cuba is so close—and US President John F. Kennedy demanded their removal. He even put Cuba under quarantine to ensure that more missiles were not on their way. We know that part of the reason why the Soviet Union backed down during this crisis was because of JFK's secret assurances that America would remove missiles from Turkey shortly after the Soviets removed theirs from Cuba.³⁵ But this "counter-example" does not deal with a full-blown war, much less a post-war period, and so it is not directly analogous. People who have suffered through a war do indeed deserve to know what the substance of the settlement is.

This does *not* mean that the people must explicitly and immediately endorse the proposed settlement, for instance through a plebiscite or

referendum. Nor does it mean that the settlement must be drafted up in a formal treaty. Both things are clearly permissible, and perhaps desirable as well: a show of popular support for a settlement might bolster its endurance; and writing out the peace terms can enhance the clarity of everyone's understandings and expectations. But it seems needlessly strict to insist that both phenomena must be there for the settlement to be legitimate. We can imagine numerous and serious practical difficulties with running a referendum in the immediate post-war period. We can also imagine communities coming to an understanding on the settlement—even going so far as to adhere to it—without nailing down every possible contingency in a detailed legal document. After all, the 1919 Treaty of Versailles was a detailed legal document, and it did not work out all that well whereas the 1945 post-World War II settlement was left at an abstract level intentionally, lest too much fussing over each exact detail spoil the deal. In a sense, settlements are processes, and while on the one hand they represent the end of a war, in another sense they inaugurate transition and change. There needs to be a certain flexibility and sensitivity as one tries to fix and solidify the terms for moving on.³⁶

Summary

Perhaps it would be helpful here, before considering an historical application in detail, to list the set of settlement principles discussed and defended. A state in the war termination phase ought to be guided by all of the following norms:

- ♦ **Proportionality and Publicity.** The peace settlement should be both measured and reasonable, as well as publicly proclaimed. To make a settlement serve as an instrument of revenge is to make a volatile bed one may be forced to sleep in later. In general, this rules out insistence on unconditional surrender.
- ♦ **Rights Vindication.** The settlement should secure those basic rights whose violation triggered the justified war. The relevant rights include human rights to life and liberty and community entitlements to territory and sovereignty. This is the main substantive goal of any decent settlement, ensuring that the war will actually have an improving affect. Respect for rights, after all, is a foundation of civilization, whether national or international. Vindicating rights, not vindictive revenge, is the order of the day.
- ♦ **Discrimination.** Distinction needs to be made between the leaders, the soldiers, and the civilians in the defeated country one is negotiating with. Civilians are entitled to reasonable immunity from punitive post-war measures. This rules out sweeping socio-economic sanctions as part of post-war punishment.

- ♦ Punishment #1. When the defeated country has been a blatant, rights-violating aggressor, proportionate punishment must be meted out. The leaders of the regime, in particular, should face fair and public international trials for war crimes.
- ♦ Punishment #2. Soldiers also commit war crimes. Justice after war requires that such soldiers, *from all sides to the conflict*, likewise be held accountable to investigation and possible trial.
- ♦ Compensation. Financial restitution may be mandated, subject to both proportionality and discrimination. A post-war poll tax on civilians is generally impermissible, and there needs to be enough resources left so that the defeated country can begin its own reconstruction. To “beggar thy neighbour” is to pick future fights.
- ♦ Rehabilitation. The post-war environment provides a promising opportunity to reform decrepit institutions in an aggressor regime. Such reforms are permissible—as I’ll argue next chapter—but they must be proportional to the degree of depravity in the regime. They may involve: demilitarization and disarmament; police and judicial re-training; human rights education; and even deep structural transformation towards a minimally just society governed by a legitimate regime.

In short, there needs to be an *ethical* “exit strategy” from war, and it deserves at least as much thought and effort as the purely military exit strategy so much on the minds of policy planners and commanding officers. The terms of a just peace should satisfy all these requirements.

Any serious defection by any participant from these principles of just war settlement should be seen as a violation of the rules of just war termination, and so should be punished. At the least, violation of such principles mandates a new round of diplomatic negotiations—even binding international arbitration—between the relevant parties to the dispute. At the very most, such violation may give the aggrieved party a just cause—but *no more than a just cause*—for resuming hostilities. Full recourse to the resumption of hostilities may be made *only if* all the other traditional criteria of *jus ad bellum*—proportionality, last resort, etc.—are satisfied in addition to just cause.

Case Study: The 1991 Persian Gulf War Settlement

Let us consider, as helpful illustration, the justice of the post-war settlement with Iraq in 1991 following the Persian Gulf War. (We’ll look at the justice of the post-war arrangements in the second, 2003, war next chapter.)

We argued, in Chapter 2, that the American-led Allies had a just cause in resorting to war against Iraq in 1991, following Iraq’s invasion of Kuwait in 1990 and the subsequent plundering and brutality. Let us, to facilitate analysis, assume that the war on the part of the Allies also met the other criteria of *jus ad bellum*. And let us bracket in the meantime the question of how

well *jus in bello* was fulfilled on both sides. Given these assumptions, how just and lawful was the termination phase of this otherwise justified war?

Consider first the aim of a just war: vindicating rights. When did the Allies terminate the war? The *de facto* (or actual) end to the war came on February 27, 1991, when American President George Bush Sr. ordered the Allied forces to adhere to a cease-fire, following the rout and flee of Iraqi forces from Kuwait. The *de jure* (or legal) end to the war came more than a month later, on April 3, 1991, when UN Security Council Resolution 687 proclaimed its end. Did the Allies have just cause to terminate the war when they did? It seems that the answer to this question is probably yes. It appears that the rights of the Kuwaiti people were reasonably vindicated, first and foremost by having the Allies stop the Iraqi aggression and, indeed, drive the Iraqi aggressors out of Kuwait entirely. Kuwait was then re-established as an independent community acknowledged by international society.

Between March and April 1991, terms of the cease-fire were hammered out under the auspices of the UN Security Council. These terms, which were publicly announced, included the following requirements of Iraq: 1) it had to cease hostilities and declare a formal end to them; 2) it had to rescind its claim to Kuwait, and return looted property; 3) it had to release immediately all prisoners of war (POWs); 4) it had to accept liability for loss, injury and damage in Kuwait which resulted from its invasion; and 5) it had to provide to the UN total disclosure of its program for making WMD and commit itself to that program's destruction, subject to verification by on-site UN inspectors.

Items 1–3 of these terms of the Persian Gulf War peace agreement are essential elements of agreeing to end a war: to stop fighting; to accept responsibility for aggression; to renounce unjust claims; and to release POWs. Article 4 provides for the kind of compensation for aggression that was defended in limited fashion above. The compensation was paid out in the following way. Following the war, the UN established a “compensation fund” that was financed by a gradual lifting of the oil embargo that was levelled on Iraq after its initial invasion of Kuwait. Under these terms, 30 per cent of the oil export sales of Iraq were allowed to be kept by its government, with the (purely verbal) stipulation that such monies be employed to provide for the humanitarian needs (foodstuffs and medicine) of its people. The remaining 70 per cent was split between: 1) the compensation fund for Kuwait; 2) a special fund designed to pay for the expenses of the on-site UN weapons inspectors; and 3) an escrow “incentive account,” which was to be handed over to Iraq once full compliance with the terms of settlement was achieved. Such an account seems to have been an enlightened and sophisticated actualization of the compensation principle.

Article 5 of the ceasefire provided for that partial disarmament and demilitarization of the aggressor, defended above as part of the goal of achieving a more secure and peaceful international order than was the case prior to the war. In addition to the verifiable dismantling of Iraq's WMD program, the

Security Council also established demilitarized zones within Iraq, north of the 36th parallel (to greater protect Israel, Turkey and the Kurdish minority within Iraq) and south of the 32nd parallel (to greater protect Kuwait, Saudi Arabia and the Shiite community within Iraq). Iraq pledged neither to fly over nor to occupy those areas with military forces, for an indeterminate amount of time. It also acquiesced to Allied air patrols of the no-fly zones (NFZ) for enforcement purposes. It seems that such terms were also entirely in line with the criteria of *jus post bellum* defended above: Iraq was to be demilitarized not to the point of collapse but at least to the point where it could not pose a short-term threat to international peace and security within the region.

One criticism which might be levelled at this arrangement was that, because it was indefinite and open-ended, flare-ups were bound to occur. The first time was in January 1993, when Iraq tested the Allies by flying into both NFZs and quickly crossing the border into Kuwait to retrieve some weaponry it had abandoned during the retreat back into Iraq during February 1991. The US retaliated with three air attacks and missile strikes on military targets, albeit with at least one errant missile striking a residential section within Baghdad. Military fire was exchanged several times in 1996. Then, starting in late 1997 and moving into the summer of 1998, Iraq refused to comply with the UN weapons inspectors anymore. By December 1998 American President Bill Clinton ordered Operation Desert Fox.³⁷ British and American forces combined to bombard military targets in Iraq for four days. The “operation”—a serious military offensive—attempted to enforce compliance with the inspections regime and, in any event, to set back that part of Iraq’s WMD program that had eluded inspection. The latter aim may have succeeded but not the former: Iraq as of 1999 absolutely refused to let any UN weapons inspectors back into its territory. This was, of course, cited as one major cause of war for the 2003 regime change.

One aspect of *jus post bellum* which clearly was not met was the failure to commit to holding any war crimes trials at all, on either side. There was nothing credible in the cease-fire agreement to this effect, nor was there any public commitment on the part of the Allies, particularly the USA.

Another region of controversy here concerns discrimination. When Iraq invaded Kuwait in August, 1990, much of the developed world responded with economic sanctions. These were substantially maintained by the peace treaty and, in fact, lasted until the very fall of the Hussein regime after the 2003 war, or 13 years in total. As noted before, soon after the war, the Allies partially eased the economic embargo on Iraqi oil exports, stipulating that the 30 per cent Iraqi benefit from such new sales be devoted to meeting the humanitarian needs of its people (foodstuffs, medicine and infrastructure repairs). However, it could be argued that this was too strict and indiscriminate a policy on the part of the Allies. After all, everything that everyone knew about the Hussein regime indicated that the funds would be used for

buttressing and benefiting its position, and there were no effective enforcement mechanisms built into the terms of Iraq's receiving this money. (The Allies tried to change this somewhat in 1996 with the so-called "Oil-for-Food" program, but that policy was deeply troubled—and, it turns out, deeply riddled with corruption.) So perhaps it was disingenuous for the Allies simply to leave the matter at that—particularly with regard to the damage that their bombing had inflicted on part of the water treatment supply system in Iraq. Perhaps effective enforcement mechanisms could have been built into the receipt of that cash, and/or perhaps more could have been made available, from the oil fund, to non-governmental aid and relief agencies. In the absence of such measures, the Allies might have been guilty of some callousness with regard to the post-war sufferings of the Iraqi people in the 1990s.

Of course, this is not at all to exonerate the Hussein regime, whose truculence and indifference to the well-being of its own people must loom large in any fair-minded account of why the Iraqi populace seemed to suffer such deprivations during and after the war. It is to apportion only *some* of the blame for this suffering: more should have been done for the Iraqi people than to say "Look, we give Saddam 30 per cent of the oil revenue for you, but he uses it for himself and his army." Funding international relief agencies to go in with actual food and medicine seems an obvious way around this, which should have at least been tried. To the extent to which this settlement violated discrimination, it also raises issues of proportionality. In other words, the strictness of the sanctions, and the widespread effects they had on civilians, revealed that the treaty involved disproportionate punishment.³⁸

Perhaps it might be said that the fact that the Allies created so-called "safe havens"—protected by military force and liberally supplied with humanitarian aid—within both demilitarized zones for the Kurdish and Shiite communities does, in fact, indicate substantial adherence to the rule of discriminating between the *people* of a given aggressor and the aggressive *regime* itself. And so it does. However, the account cannot be left at this point. After all, during the war Bush himself explicitly, and publicly, called on the Iraqi people to overthrow Hussein. And the Kurds and Shiites heeded that call, but were crushed in the immediate post-war period by the remnant of Hussein's armed forces. I believe that such a call, and such a response, created an obligation independent of the principle of discrimination on the part of the Allies, especially the United States, to create safe havens for those persecuted people in the wake of war.

Despite these substantial difficulties, it needs to be admitted that the majority of the post-war measures *were* directly targeted at the aggressor regime: forcing it to abandon its claims; reducing its military capacity; limiting its resources and regional sway; and so on. So, the judgment with regard to discrimination seems quite difficult and conflictual. It seems that, on the whole, the Allies did indeed focus on punishing the regime—they clearly *intended* to target the regime—but the extent and depth of Iraqi civilian

deprivation in the aftermath leaves one wondering whether the Allies could have done more to ease their suffering, without providing any comfort to the aggressor regime.

The big failing with the Persian Gulf War settlement concerns rehabilitation, in two senses. First, there was little attempt to reform Kuwait's political structure after its independence was re-established. Second, there was no attempt to reform the Hussein regime in Iraq. There are probably two reasons why this was the case. The first is the idea that the just cause for going to war was the invasion and brutality against Kuwait. Once the Allies reversed the invasion and restored the Kuwaitis to some security, the reasons justifying the war ended. It seems Bush Sr. sincerely believed in this, because many of his generals asked for permission to go into Baghdad to take out the Hussein regime, and he denied them. He had a quite conservative, cautious understanding of just war principles. The second reason for refraining from rehabilitating Iraq at that time was a belief that the various peace treaty terms would sufficiently contain the Hussein regime from further misadventures.

This choice not to rehabilitate was a mistake, and it is partly because of this Iraq experience that we have compelling evidence that forcible post-war rehabilitation can be, in some cases, a good long-term idea. This may be one reason why the mood in favour of rehabilitation is so much stronger today. Failing to rehabilitate Kuwait diminished the overall value of the war: while the war made Kuwaitis much better off than during the Iraqi occupation, did it make them better off than before the whole business? Not obviously so, and wars which fail to do this cannot be viewed very brightly. Failing to rehabilitate Iraq cost much more. First, the Kurdish and Shiite resistance to Hussein was betrayed. Second, the costs of the ongoing military containment programs were considerable. Third, the whole weapons inspection process could have happened much more quickly and effectively under a different regime instead of lasting for over a decade and escalating into a cause for another war. Fourth, all the fretting about Saddam supporting terrorism could have been avoided. Indeed, perhaps the whole second war could have been prevented. Above all, the Iraqi people would have been saved from: 1) the ravages of the sweeping sanctions; and 2) the rights-violating tyranny of the Hussein regime. What's morally the most striking about the Persian Gulf War settlement terms is the insensitivity to, and hence culpability for, the continued misery and rights-violation suffered by ordinary Iraqis. This experience, and in other cases throughout the 1990s, have rightly lessened concerns about undue interference and intervention, and instead strengthened the moral and even strategic case for progressive post-war rehabilitation measures.³⁹

Now, it is very easy indeed to point out flaws and mistakes a long time after a serious decision has been made and we have been able to see the flow of history in-between. "Monday Morning Quarterbacks" always seem to know the right play *after* the results are in. We must resist this temptation. Wartime

decision-making is incredibly pressured, the evidence often not as decisive as one wishes, the long-term consequences at times very difficult to see. We should not envy those whose job and responsibility it is to make such choices. Bush Sr. stuck to a cautious interpretation of just war theory and international law, and thus believed that the Allies had to stop after they drove Iraq out of Kuwait. He must have been anxious to stop the war, too—America's first major war since Vietnam. And the international scene was quite delicate at that time: the USSR and its Eastern European client states were all imploding and so Bush Sr. wanted to be prudent and cautious so as not to unwittingly spark something else far more severe. All very understandable and reasonable positions at the time. And that must really be our standard: *what was it reasonable to believe and do at the time?* At the time, perhaps regime change did seem incredibly risky, especially with the Vietnam quagmire looming large in memory and not wanting to convey to collapsing communist states that America favoured bold, Western-led social re-engineering around the world. But we have learned much since the 1990s, about regime change in general and about that regime in particular, and so perhaps the 1991 decision was a failure by history's harsh, long lights. This is not so much to criticize Bush Sr. as to learn from his example for the benefit of future decision-makers. It is not a personal criticism; it is a statement that the policy failed as a result of its effects. But, in my view, Bush Sr. can be more readily criticized for the maintenance of the sanctions. In spite of the safe havens, it was predictable at the time that Saddam's clique would always take care of itself, and thus nation-wide sanctions would bite into civilian well-being. There were mitigating factors, we have seen; even so, not quite enough effort was made in thinking that question through. And so the situation dragged on and on, the sanctions bit more and more severely, and serious problems were created for the Iraqi people and the Clinton and Bush Jr. administrations. It was also reasonable to see, in 1991, that if you let the weapons inspections process run indefinitely, that eventually Iraq would chafe and challenge it. Firm deadlines should have been given to prevent all the subsequent skirmishes and serious misunderstandings, which of course were partly responsible for sparking another war.

Notes

1. B.H. Liddell Hart, *Strategy* (New York: Random House, 1974), 338.
2. In *War and International Justice: A Kantian Perspective* (Waterloo, ON: Wilfrid Laurier University Press, 2000), pp. 218–23, I refer to some pieces of international law in the Hague Convention which *do* mention war termination, but such laws are: 1) very dated, almost 100 years old now; and 2) radically thin and lacking in substance. I suppose there are pieces of international human rights law which international lawyers would say also apply to post-war situations. Fair enough—and good—but it remains true that these pieces are not specifically designed to

guide states during that post-war phase, which is what I'm talking about here. There is the related issue of foreign occupation, and there is some international law on that, but we'll discuss it in the next chapter on regime change.

3. M. Boemeke, ed. *The Treaty of Versailles* (Cambridge: Cambridge University Press, 1998). However, we should not make the mistake of believing that the Treaty exonerates the German people from allowing Hitler to come to power. The Treaty may have been a factor in laying the groundwork for World War II but it can hardly be considered the only one. The failure of rival German elites to challenge Hitler, the ruthless thuggery of the Nazis, and the electoral appeal of simple solutions in a time of complex crisis were all important domestic factors in Germany. For an excellent study, see M. Macmillan, *Paris 1919* (New York: Macmillan, 2003).
4. D. Reiff, *Slaughterhouse: Bosnia and The Failure of the West* (New York: Simon and Schuster, 1995).
5. This is not to deny the existence, or the importance, of the robust conflict resolution literature. Much of that literature is relevant to the present concern, but not much of it is located within the explicitly *ethical* values and commitments of just war theory, whereas this chapter is. For more on conflict resolution in general, see: S.J. Cimbala, *Strategic War Termination* (New York: Praeger, 1986); P.R. Pillar, *Negotiating Peace: War Termination as a Bargaining Process* (Princeton: Princeton University Press, 1983); S. Albert and E. Luck, eds. *On the Endings of Wars* (London: Kennikat Press, 1980); and F.O. Hampson, *Nurturing Peace: Why Peace Settlements Succeed or Fail* (Washington, DC: US Institute of Peace, 1996).
6. M. Walzer, *Just and Unjust Wars* (New York: Basic Books, 3rd ed., 2000), 119, xx.
7. Walzer, *Wars*, 109–24.
8. Churchill, quoted in Walzer, *Wars*, 112.
9. Walzer, *Wars*, 109–24, 263–68; M. Walzer, in Symposium on the Bombing of Hiroshima, *Dissent*, Summer 1995, 330.
10. R. Scarborough, *Rumsfeld's War* (New York: Regnery, 2004); J. Carroll, *Crusade: Chronicles of an Unjust War* (New York: Metropolitan, 2004).
11. Walzer, *Wars*, 118.
12. This image of just war as radical surgery, and just settlement as the subsequent therapy, came to mind while reading N. Oren, "Prudence in Victory," in N. Oren, ed. *Termination of War: Processes, Procedures and Aftermaths* (Jerusalem: Hebrew University Press, 1982), 147–64.
13. Walzer, *Wars*, 113.
14. Walzer, *Wars*, 113, 119; E. Karsh and I. Rauter, *Saddam Hussein: A Political Biography* (New York: Grove, 2003) and C. Coughlin, *Saddam: King of Terror* (London: Ecco, 2002).
15. Walzer, *Wars*, 297.
16. R. Clark, *The Impact of Sanctions on Iraq* (London: World View Forum, 1996); A. Arnove and A. Abunimah, eds. *Iraq Under Siege* (London: South End Press,

- 2000); G. Simons, *The Scourging of Iraq* (New York: Macmillan, 2nd ed., 1996); A. Peirce, "Just War Principles and Economic Sanctions," *Ethics and International Affairs* (1996), 99–113; and the multi-essay exchange on the issue between J. Gordon and G. Lopez, from pp. 123–50, in *Ethics and International Affairs* (1999).
17. Walzer, in *Dissent*, 330.
 18. Walzer, *Wars*, 288.
 19. Walzer, *Wars*, 292–301.
 20. Walzer, *Wars*, 319–22; M. Reisman and C. Antoniou, eds. *The Laws of War* (New York: Vintage, 1994), 337–50; T. Tanaka, *Hidden Horrors: Japanese War Crimes in World War II* (Boulder, CO: Westview Press, 1997); and T.P. Maya, *Judgment at Tokyo: The Japanese War Crimes Trial* (Lexington, KY: University of Kentucky Press, 2001).
 21. Reisman and Antoniou, eds. *Laws*, 332–3.
 22. Admittedly, however, there was a 100 per cent conviction rate in the Tokyo trials, which rightly raises eyebrows. There is no denying, looking at the events of 1945–6, that the Americans truly had it in for the Japanese.
 23. Walzer, *Wars*, 292–6; Reisman and Antoniou, eds. *Laws*, 318–37; J. Persico, *Nuremberg: Infamy on Trial* (New York: Penguin, 1995) and M. Marus, *The Nuremberg War Crimes Trials 1945–6* (New York: St. Martin's Press, 1997).
 24. Walzer, *Wars*, 309–16; Reisman and Antoniou, eds. *Laws*, 357–70; W. Schabas, *An Introduction to the International Criminal Court* (Cambridge: Cambridge University Press, 2001); S. Hersh, *My Lai 4* (New York: Doubleday, 1970); P. French, ed. *Individual and Collective Responsibility: The Massacre at My Lai* (Cambridge: Harvard University Press, 1972); S. Hersh, *Chain of Command: The Road from 9/11 to Abu Ghraib* (New York: HarperCollins, 2004).
 25. Walzer, *Wars*, 123.
 26. R. Regan, *Just War: Theory and Cases* (Washington, DC: Georgetown University Press, 1996), 172–212.
 27. Walzer, *Wars*, 290–91, 298.
 28. Walzer, *Wars*, 299–301.
 29. Walzer, *Wars*, 301; US Congress, *The 9/11 Commission Report* (Washington, DC: US Congress, 2004).
 30. Walzer, *Wars*, 301–3.
 31. P. Christopher, *The Ethics of War and Peace* (Englewood Cliffs, NJ: Prentice Hall, 1994), 139–64; and Walzer, *Wars*, 304–28.
 32. Walzer, *Wars*, 309–16, and Reisman and Antoniou, eds. *Laws*, 357–70.
 33. Walzer, *Wars*, 305–16.
 34. I. Kant, *The Metaphysics of Morals*, trans. M. Gregor (Cambridge: Cambridge University Press, 1995), 114–24; Orend, *Kantian Perspective*, *passim*.
 35. M. Walker, *The Cold War: A History* (New York: Henry Holt, 1995), 160–83.
 36. A. Arato, *Civil Society, Constitution and Legitimacy* (Lanham: Rowman and Littlefield, 2000).

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37. Some were scandalized that Clinton ordered the operation on the night before the first scheduled vote on his impeachment in the US House of Representatives. Others noted the unhappy title of the operation, since “Desert Fox” was Nazi General Erwin Rommell’s nickname during The Second World War.
38. See the sources in Note 16.
39. Information for this section on the Persian Gulf War has been drawn from the following sources: Regan, *Cases*, 172–79; L. Freedman and E. Karsh, *The Gulf Conflict: Diplomacy and War in the New World Order* (London: Farber and Farber, 1991); W. Danspeckgruber and C. Tripp, eds. *The Iraqi Aggression Against Kuwait* (Boulder, CO: Westview, 1996); US News and World Report, *Triumph without Victory* (New York: Random House, 1992); James Turner Johnson and G. Weigel, eds., *Just War and Gulf War* (Washington, DC: University Press of America, 1991); and A. Beyer and B. Green, eds. *Lines in the Sand: Justice and the Gulf War* (Louisville, KY: John Knox, 1992).